

24STCV19646 24STCV19646

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Case Number: 24STCV19646 Hearing Date: September 11, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 11, 2026 TRIAL DATE: Not set

CASE: Willie McMullen v. Mural Media LLC 401K, et al.

CASE NO.: 24STCV19646

MOTION

OF COLDWELL BANKER RESIDENTIAL BROKERAGE

COMPANY

AND RYAN MANAVI FOR SUMMARY JUDGMENT,

OR

IN THE ALTERNATIVE, SUMMARY ADJUDICATION

PLAINTIFF'S MOTION TO VACATE VOID

OR VOIDABLE ORDER

SUSTAINING DEFS COLDWELL BANKER'S

AND RYAN MANAVI'S

DEMURRERS WITHOUT LEAVE TO AMEND

PLAINTIFF'S MOTION TO VACATE VOID

OR VOIDABLE ORDER SUSTAINING DEFS SBS TRUST DEED NETWORK'S DEMURRERS WITHOUT LEAVE TO AMEND

PLAINTIFF'S MOTION TO DEEM
REQUESTS FOR ADMISSIONS,

SET TWO, SERVED ON DEF. PENSICO TRUST
COMPANY LLC,

CUSTODIAN FBO SYLLA MCCLELLAN IRA
AS ADMITTED

Plaintiff Willie McMullen ("Plaintiff") brings this quiet title action concerning the real property at 2757 S. Mansfield Avenue, Los Angeles, CA 90016 (the "Property") against defendants Pensco Trust Company LLC, Custodian FBO Sylla McClellan IRA, 080000001321 ("Pensco"), SBS Trust Deed Network ("SBS"), Coldwell Banker Residential Brokerage Company ("Coldwell Banker") and Ryan Manavi ("Manavi"), among others.

Before the court are four motions: (1) Coldwell Banker and Manavi's Motion for Summary Judgment, or in the Alternative, Summary Adjudication; (2) Plaintiff's Motion to Vacate Void or Voidable Order Sustaining Defendants Coldwell Banker's and Ryan Manavi's Demurrers Without Leave to Amend; (3) Plaintiff's Motion to Vacate Void or Voidable Order Sustaining Defendant SBS Trust Deed Network's Demurrers Without Leave to Amend; (4) Plaintiff's Motion to Deem Requests for Admissions, Set Two, Served on Defendant Pensco Trust Company LLC, Custodian FBO Sylla McClellan IRA As Admitted.

The court addresses these matters in turn.

I. DISCUSSION

RE MOTION FOR SUMMARY JUDGMENT

A. Background

On March 13, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Pensco, SBS, Coldwell Banker, Manavi, Mural Media LLC 401K Plan, Mural Media LLC, Lawrence E. Elkins and Norma J. Elkins as Trustees of the Elkins Family Revocable Trust of 2002, Lawrence C. Henig as

trustee of the Lawrence C. Henig Revocable Trust Dated 6/21/99, Lida J. Maultsby ("Maultsby"), and others, alleging causes of action for (1) quiet title, (2) cancellation of instrument, (3) unlawful business practices, and (4) negligence.

According to the FAC, in 2016, Maultsby recorded affidavit and quitclaim deeds which transferred ownership of the Property to her, as trustee, after the death of her father.

In 2020, Capital Benefit, Inc. ("Capital") caused a Deed of Trust to be recorded which lists SBS as trustee. In

2022, SBS recorded a notice of default and election to sell under Deed of Trust. In May 2023, the trustee's sale

was scheduled but was ultimately postponed because the SBS auctioneer was personally served with a recorded copy of a lis pendens. Later that month, SBS recorded a Trustee's Deed Upon Sale and defendant Mural Media LLC 401k Plan ("Mural Media") entered into a listing agreement with Coldwell Banker to sell the Property. In June 2023, SBS recorded a Deed of Reconveyance which reconveyed the Property back to Maultsby. In 2024, Maultsby transferred to Plaintiff a 10% interest in the Property.

Plaintiff's main contention appears to be that the foreclosure sale of the Property never took place.

On August 27, 2025, Coldwell Banker and Manavi (hereinafter referred to collectively as "Coldwell") filed a demurrer to the FAC.

On December 11, 2025, the court sustained Coldwell's demurrer to the third cause of action without leave to amend and overruled the demurrer to the first cause of action.

Accordingly, the first cause of action for quiet title is the only remaining claim against Coldwell.

On December 24, 2025, Coldwell filed a verified Answer to the FAC which, in relevant part, disclaims any interest in the Property.

Motion for Summary Judgment

On June 12, 2026, Coldwell filed this motion for summary judgment.

On August 18, 2026, Plaintiff filed an opposition.

On August 28,
2026, Coldwell filed a reply.

B. Judicial Notice

Coldwell
requests judicial notice of eight court filings from the following cases: 23STCV21442,
23STCV25631, 24STCV21169, and 24STCV26374.

Plaintiff
requests judicial notice of forty-six documents.

The court declines to take judicial notice of these
documents as they are not relevant to the court's disposition of this motion.

C. Evidentiary Objections

Plaintiff asserts
two objections to portions of the declaration of Ryan Manavi, eight objections
to Coldwell's requests for judicial notice, and four objections to portions of
the declaration of Nicole A. Docherty and exhibits attached thereto.

The court
declines to rule on these objections as they are not relevant to the court's
disposition of this motion. (Code Civ.
Proc, § 473c, subd. (q).)

D. Legal Standard

The function of a motion for
summary judgment or summary adjudication is to allow a determination as to
whether an opposing party cannot show evidentiary support for a pleading or
claim and to enable an order of summary dismissal without the need for trial. (Aguilar
v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil
Procedure section 437c(c) "requires the trial judge to grant summary judgment
if all the evidence submitted, and 'all inferences reasonably deducible from
the evidence' and uncontradicted by other inferences or evidence, show that
there is no triable issue as to any material fact and that the moving party is
entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp.

(1992) 7 Cal.App.4th 1110, 1119.)” “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at p. 467; Code Civ. Proc., § 437c, subd. (c).)

E. Application

Coldwell moves for summary judgment on the sole ground they have disclaimed any interest in the Property. The motion lacks merit. “In a quiet title action, a defendant who disclaims an interest in plaintiff’s land is not entitled to judgment in his favor. [Citation.] Instead, the judgment should quiet title against the disclaiming defendant.” (Linthicum v. Butterfield (2009) 175 Cal.App.4th 259, 270; see also Bradley Co. v. Ridgeway (1936) 14 Cal.App.2d 326, 336-337 [holding trial court erred in entering judgment on the pleadings as to a defendant who disclaimed interest in property and did not appear at trial; rather, judgment “should have quieted title against him since

he was a defendant in the action who had disclaimed any interest in the bonds or in the real property described in the amended complaint.”].) Rather, the effect of Coldwell's disclaimer is two-fold: (1) it serves as an evidentiary admission (see, e.g., *Maddox v. Herrington* (1949) 94 Cal.App.2d 265); (2) Plaintiff cannot recover costs against Coldwell (see, e.g., *Water for Citizens of Weed California v. Churchwell White LLP* (2023) 88 Cal.App.5th 270, 281–282 quoting *Castro v. Barry* (1889) 79 Cal. 443, 447 [“The rule may be stated more broadly: A property owner may bring a quiet title action ‘to determine any adverse claim whatever. For if the defendant by his answer disclaims all interest whatever, judgment may, nevertheless, be entered against him, though in such case it must be without costs.’”].)

F. Conclusion

The motion
for summary judgment is DENIED.

II. DISCUSSION RE MOTIONS TO VACATE

A. Background

On March 13, 2025, Plaintiff filed the FAC against Pensco, SBS, Coldwell Banker, Manavi, and others, alleging causes of action for (1) quiet title, (2) cancellation of instrument, (3) unlawful business practices, and (4) negligence. The first, third, and fourth causes of action are alleged against SBS. The first and third causes of action are the only claims alleged against Coldwell Banker and Manavi.

SBS's Demurrer

On July 16, 2025, SBS filed a demurrer to the FAC.

On December 11, 2025, the court sustained SBS's demurrers without leave to amend.

Coldwell Banker and Manavi's Demurrer

On August 27, 2025, Coldwell Banker and Manavi (hereinafter referred to collectively as “Coldwell”) filed a demurrer to the FAC.

On December 11, 2025, the court sustained Coldwell's demurrer to the third cause of action without leave to amend and overruled the demurrer to the first cause of action.

On December 22, 2025, Plaintiff filed this motion for reconsideration of the court's December 11, 2025, order.

On January 26, 2026, the court denied the motion for reconsideration.

Motions
to Vacate

On June 8 and 10, 2026, Plaintiff filed two motions to vacate the court's December 11, 2025, order sustaining SBS's demurrer without leave to amend and sustaining Coldwell's demurrer to the first cause of action without leave to amend.

On August 28, 2026, SBS filed an opposition. On the same day, Coldwell filed a separate opposition.

At the time of this writing, no replies had been filed.

The court considers together the motions to vacate.

B. Judicial Notice

Plaintiff requests judicial notice of forty-six documents. The request for judicial notice of Exhibits 1-21 and 46, the request is DENIED. Plaintiff fails to establish the relevance of those exhibits to this motion. As to Exhibits 22-45, the unopposed request for judicial notice is GRANTED. (Evid. Code, § 452, subds. (a), (b).)

C. Analysis

The motions lack merit.

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”² (Code Civ. Proc., § 473, subd. (d).) “When a trial court has fundamental jurisdiction but fails to act in the manner prescribed, it is said to have acted in excess of its jurisdiction. Because an ordinary act in excess of jurisdiction does not negate a court’s fundamental jurisdiction to hear the matter altogether, such a ruling is treated as valid until set aside. A party may be precluded from seeking to set aside such a ruling because of waiver, estoppel, or the passage of time. Thus, error in rendering a judgment or order generally falls into two categories: A court can lack fundamental authority over the subject matter, question presented, or party, making its judgment void, or it can merely act in excess of its jurisdiction or defined power, rendering the judgment voidable.” (Braugh v. Dow (2023) 93 Cal.App.5th 76, 87–88 (cleaned up).) “Only void judgments and orders may be set aside under Code of Civil Procedure section 473, subdivision (d); voidable judgments or orders may not.” (People v. Financial Casualty & Surety, Inc. (2021) 64 Cal.App.5th 405, 415.) A

Here,

Plaintiff fails to show the court lacked subject matter jurisdiction over the demurrers. Plaintiff establishes only that the court’s December 11, 2025, order, is, at most, voidable. This is not grounds to vacate an order pursuant to Code of Civil Procedure section 473(d).[1]

D. Conclusion

Plaintiff’s motions to vacate are DENIED.

III. DISCUSSION

MOTION TO DEEM ADMITTED

A. Background

On June 8, 2026, Plaintiff filed this motion to deem Requests for Admissions, Set Two, served on Pensco as admitted. Plaintiff does not request sanctions.

On August

27, 2026, Pensco filed an opposition.

At the time

of this writing, no reply had been filed.

B. Analysis

After

reviewing the briefing, the court finds the motion is moot. “The court shall make this order [to deem admitted the genuineness of any documents and the truth of any matters specified in the requests for admission] unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.”² (See Code Civ. Proc., § 2033.280(c), emphasis added; see also *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.)³ Here, Pensco served verified responses with objections to the Requests for Admission on June 16, 2026. (See Glassman Decl., Ex. A.)

C. Conclusion

The motion is MOOT.

IV. DISPOSITIONS

1. The motion for summary judgment is Denied.

2. Plaintiff’s motions to vacate are Denied.

3. Plaintiff’s motion to deem admitted is Moot.

Moving parties to give notice, unless waived.

Dated: September 11, 2026

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)

) Brock T. Hammond

) Judge of the Superior Court)

[1] Further, as to Coldwell, Plaintiff simply repackages arguments raised in opposition to Coldwell's demurrer and in support of his motion for reconsideration of the court's December 11, 2025 order.